# Submission

My Files

My Files

University

## Document Details

Submission ID

trn:oid:::30744:106353043

Submission Date

Jul 30, 2025, 12:22 AM GMT+5:30

Download Date

Jul 30, 2025, 12:25 AM GMT+5:30

File Name

FINAL DISSERATION PAPER-2.docx

File Size

80.6 KB

51 Pages

16,018 Words

91,684 Characters

# *% detected as AI

AI detection includes the possibility of false positives. Although some text in this submission is likely AI generated, scores below the 20% threshold are not surfaced because they have a higher likelihood of false positives.

**Caution: Review required.**

It is essential to understand the limitations of AI detection before making decisions about a student's work. We encourage you to learn more about Turnitin's AI detection capabilities before using the tool.

**Disclaimer**
Our AI writing assessment is designed to help educators identify text that might be prepared by a generative AI tool. Our AI writing assessment may not always be accurate (it may misidentify writing that is likely AI generated as AI generated and AI paraphrased or likely AI generated and AI paraphrased writing as only AI generated) so it should not be used as the sole basis for adverse actions against a student. It takes further scrutiny and human judgment in conjunction with an organization's application of its specific academic policies to determine whether any academic misconduct has occurred.

## Frequently Asked Questions

**How should I interpret Turnitin's AI writing percentage and false positives?**
The percentage shown in the AI writing report is the amount of qualifying text within the submission that Turnitin's AI writing detection model determines was either likely AI-generated text from a large-language model or likely AI-generated text that was likely revised using an AI-paraphrase tool or word spinner.

False positives (incorrectly flagging human-written text as AI-generated) are a possibility in AI models.

AI detection scores under 20%, which we do not surface in new reports, have a higher likelihood of false positives. To reduce the likelihood of misinterpretation, no score or highlights are attributed and are indicated with an asterisk in the report (*%).

The AI writing percentage should not be the sole basis to determine whether misconduct has occurred. The reviewer/instructor should use the percentage as a means to start a formative conversation with their student and/or use it to examine the submitted assignment in accordance with their school's policies.

**What does 'qualifying text' mean?**
Our model only processes qualifying text in the form of long-form writing. Long-form writing means individual sentences contained in paragraphs that make up a longer piece of written work, such as an essay, a dissertation, or an article, etc. Qualifying text that has been determined to be likely AI-generated will be highlighted in cyan in the submission, and likely AI-generated and then likely AI-paraphrased will be highlighted purple.

Non-qualifying text, such as bullet points, annotated bibliographies, etc., will not be processed and can create disparity between the submission highlights and the percentage shown.

# THE IMPACT OF SOCIAL MEDIA CENSORSHIP ON FREEDOM OF EXPRESSION.

Student's Name

Professor

Institutional Affiliation

Course

Date

# Table of Contents

**CHAPTER ONE: INTRODUCTION** ..... 4
**1.1 Background** ..... 4
**1.2 Problem Statement** ..... 6
**1.2 Research Aim** ..... 7
**1.4 Objectives** ..... 7
**1.5 Research Questions** ..... 8
**1.6 Significance of the Study** ..... 8
**1.7 Methodology (Brief Overview)** ..... 9
**1.8 Limitations and Scope** ..... 10
**1.9 Structure of the Dissertation** ..... 11
**2.0 Definitions and Theoretical Framework** ..... 11
**CHAPTER TWO: INTERNATIONAL LEGAL FRAMEWORK FOR FREEDOM OF EXPRESSION** ..... 13
**2.1 Introduction to International Legal Standards** ..... 13
**2.2 Analysis of Key Instruments** ..... 14
**2.2.1 Defining Freedom of Expression in International Law** ..... 14
**2.2.2 Article 19 of the ICCPR: Rights and Permissible Restrictions** ..... 15
**2.2.3 UDHR, Soft Law, and Complementary Instruments** ..... 16
**2.3 Judicial Interpretations of Freedom of Expression in Digital Contexts: Analysis of Key Cases** ..... 17
**2.3.1 Human Rights Committee Views—General Comment No. 34 and Communications** ..... 17
**2.4 Permissible Restrictions and the Proportionality Principle** ..... 18
**2.4.1 Legal Standards: Legality, Necessity, and Proportionality** ..... 18
**2.4.2 Judicial and Interpretative Practice** ..... 19
**2.4.3 Recent Developments and Policy Frameworks** ..... 20
**2.4.4 Application to Social Media Platforms: Practices and Challenges** ..... 21
**2.4.5 Scholarly Critiques and Ongoing Challenges** ..... 22
**2.4.6 Conclusion** ..... 23
**2.5 Theoretical Frameworks** ..... 23
**2.5.1 Mill's Harm Principle** ..... 23
**2.5.2 Habermas's Public Sphere Theory** ..... 24
**2.5.3 Proportionality in Human Rights Law** ..... 25
**2.5.4 Relevance for Censorship's Impact on Stakeholders** ..... 26

**2.7 Platform Governance and Privatized Regulation** ..... 27
**2.7.1 Defining Platform Governance** ..... 27
**2.7.2 The Accountability Gap: Human Rights and Platform Power** ..... 27
**2.7.3 Transparency and Accountability: Recent Developments** ..... 28
**2.7.4 Ongoing Debates and Future Directions** ..... 28
**2.8 Chapter conclusion** ..... 29
**References** ..... 43

# CHAPTER ONE: INTRODUCTION

## 1.1 Background

The past decade has witnessed social media's transformation into the principal arena for public discourse. Social media, such as Facebook, X (previously Twitter), YouTube, and TikTok, have replaced and occupied the traditional media as the most popular sites to find news and activism and the hubs of democratic participation, allowing people to broadcast opinions, organize around a cause, and influence political and party agendas in history to an unprecedented extent[1]. This trend not only made information available to everyone but also introduced new challenges, because the rapid transfer of information can lead not only to beneficial social processes but also to the emergence of negative phenomena (misinformation, hate speech, and incitement to commit violent crimes).

With these threats, social media censorship has become a common phenomenon everywhere. Censorship measures extend from removing materials and account deactivations to algorithmic filtering and shadowing—practices directed either by the state or corporations in an attempt to control speech online[2]. The reasoning behind it is commonly that there is a need to make sure that the users do not fall victim and that there is a need to preserve the order and that the national security is not being threatened but the said interventions are a controversial subject in terms of their extent as well as their transparency and impartiality.

---

[1] Chakma, K. (2024). A Review of The Role of Social Media in Shaping Social Movements. *Available at SSRN 5083142*.

[2] Leerssen, P. (2023). An end to shadow banning? Transparency rights in the Digital Services Act between content moderation and curation. *Computer Law & Security Review*, *48*, 105790.

That fundamental conflict lies between the need to control content to avoid harm and the rights to free expression, which are guaranteed in several major international human rights documents, particularly by the rights stipulated in Article 19 of the International Covenant on Civil and Political Rights (ICCPR). The right of freedom of opinion and expression is insured by Article 19 but subject to restrictions that are prescribed by law and meet a legitimate aim, which, among others, are the interests of those whose rights or reputations may be adversely affected or the maintenance of law. Such a theme is particularly topical, as policymakers and companies enter the range of changing regulations to pursue and cover the rights in the digital sphere whilst defying digital harms, and it is crucial to evaluate whether the existing technologies can make the proposed way to reach the truth of global human rights despite rapidly changing technologies. Recent international and regional developments illustrate the global scope and stakes of the debate: the European Union's Digital Services Act imposes new obligations on platforms for transparency and moderation[3]. Nigeria's ban on Twitter in 2021 underscored how governments leverage platform control for political purposes, and high-profile content removals (such as on Facebook or X) continue to shape public discourse and legal scrutiny globally[4].

The censorship of social media is now a composite interaction between state actors, who could specify removals or block access, and the private entities, which would do what is possible as dictated by their own community standards and that utilize ever more algorithmic means. Such

[3] Schlag, G. (2023). European Union's regulating of social media: A discourse analysis of the Digital Services Act. *Politics and Governance*, *11*(3), 168-177.

[4] Clune, C., & McDaid, E. (2024). Content moderation on social media: constructing accountability in the digital space. *Accounting, Auditing & Accountability Journal*, *37*(1), 257-279.

commercialization of the internet is posing acute issues of responsibility, proportionality, and universality of the right to free expression in the new cyberspace popular sphere[5].

## 1.2 Problem Statement

Even based on both state and non-state actors, social media censorship is a major threat to the freedom of expression, which is a basic right under Article 19 of the ICCPR[6]. The decision to remove any content or subject it to algorithmic removals, especially without any notice or without information on how the decision was made, is in many ways arbitrary and thus easily subject to inconsistencies and self-censorship by others. This is considered disproportionately limiting marginalized voices because it has happened in cases like Nigeria, which blocked Twitter in 2021 to silence political activism, or the creation of algorithms that are currently used to ramp up discrimination against marginalized groups. In contrast to states, social media businesses are not formally subject to international human rights law, thereby leaving an international governance gap in which digital speech is completely governed by intra-firm decisions[7]. This poses both legal and ethical questions since the toll to prevent harm comes at the cost of democratic involvement

[5] Marchal, N., Hoes, E., Klüser, K. J., Hamborg, F., Alizadeh, M., Kubli, M., & Katzenbach, C. (2025). How negative media coverage impacts platform governance: evidence from facebook, twitter, and youtube. *Political Communication*, *42*(2), 215-233.

[6] Theil, S. (2022). Private censorship and structural dominance: Why social media platforms should have obligations to their users under freedom of expression. *The Cambridge Law Journal*, *81*(3), 645-672.

[7] Griffin, R. (2023). Rethinking rights in social media governance: human rights, ideology and inequality. *European Law Open*, *2*(1), 30-56.

and unwillingness to speak up through the process of censorship[8]. All these problems are aggravated by the lack of uniformity in law practices across the jurisdictions, leaving users with no obvious solutions and due process. This dissertation argues that current social media censorship practices cannot cope with the standards of international human rights because such practices are non-uniform and make it impossible to hold their users accountable, and thus, they need to be reformed to promote the principles of openness and safeguarding the most basic human rights.

## 1.2 Research Aim

By focusing on international human rights law as a tool of evaluation, this dissertation will critically determine the legal, ethical, and social implications of social media censorship on the freedom of expression in terms of the legal, ethical, and social significance. It aims at analyzing whether the advertisement of censorship relates to international standards, especially Article 19 of ICCPR, and suggests ways to strike a balance between the prevention of harm and the pursuit of basic rights of governance over the internet.

## 1.4 Objectives

- To discuss international legal standards governing freedom of expression and permissible restrictions, with a special focus on Article 19 ICCPR and related instruments.

[8] Elmimouni, H., Rüller, S., Aal, K., Skop, Y., Abokhodair, N., Wulf, V., & Tolmie, P. (2025). Exploring Algorithmic Resistance: Responses to Social Media Censorship in Activism. *Proceedings of the ACM on Human-Computer Interaction*, *9*(2), 1-24.

- To investigate the various types and justifications for social media censorship employed by states and private platforms, and how these practices impact various stakeholders, including marginalized communities, political activists, and regular users.
- To analyze the transparency, accountability, and consistency of content moderation policies currently in place.
- To suggest possible legal and policy measures that strike a balance between efforts at regulating harmful content and defending human rights.

### 1.5 Research Questions

- To what extent does social media censorship adhere to international standards regarding the right to free expression and what legal justifications are typically employed in support of restricting online speech?
- How do the content moderation methods of social media platforms impact the exercise of freedom of expression for different actors, and what mechanisms may be put in place to ensure greater international legal accountability and transparency in the implementation of the policies?

### 1.6 Significance of the Study

This study is significant academically, legally, and socially. On the academic front, it can be used by new or cutting-edge research in the fields of law, technology, and human rights and bring analysis depth to arguments about digital governance and freedom of expression[9]. Legally, it offers a scathing examination of whether the existing social media censorship services are in line

[9] Bromell, D. (2022). *Regulating Free Speech in a Digital Age*. Springer International Publishing.

with international human rights requirements. The study provides potential policymakers with evidence-based suggestions that can be used to make reforms in their legislation using the example of the Digital Services Act (EU) and the case of the Twitter ban in Nigeria as evidence of the global governance issues[10]. It also applies to the companies operating technology, civil society, and digital rights activists that aim to enhance platform governance, transparency, and due process. The fact that social media has become a key venue of democratic activity and activism is universal, as are the concerns relating to the protection of foundational rights in the context of new developments, which the balance between the preservation of harm and open discourse on the internet has informed[11].

**1.7 Methodology (Brief Overview)**

The main research methodology employed by this dissertation is the doctrinal legal research that bases its analysis on the study of treaty law (including the ICCPR), international and domestic case law, and the secondary literature vital to the analysis. It is planned to compare the regulatory strategies and the main trends in such jurisdictions as Nigeria, the United States, and the European Union[12]. The given study chooses these jurisdictions due to their different regulatory patterns and having notable case studies, a Twitter ban in Nigeria and the Digital Services Act

[10] Schlag, G. (2023). European Union's regulating of social media: A discourse analysis of the Digital Services Act. *Politics and Governance*, *11*(3), 168-177.

[11] Steel, J., & Petley, J. (Eds.). (2023). *The Routledge companion to freedom of expression and censorship* (pp. 232-244). Abingdon: Routledge.

[12] Bhaghamma, G. (2023). A comparative analysis of doctrinal and non-doctrinal legal research. *ILE Journal of Governance and Policy Review*, *1*(1), 88-94.

approved by the EU to adopt the global trends. To highlight the practice implications, the study also takes into account the platform transparency reports, chosen case studies, and stakeholder positions, e.g., the positions of activists, civil society, and users. Chapter Three will offer a detailed description of the research design and methods chosen.

**1.8 Limitations and Scope**

This dissertation dwells on legal, moral, and social consequences of social media censorship in chosen jurisdictions, the United States, the European Union, and Nigeria, with regard to other African nations where appropriate. The paper compares the regulation strategies and trends in these areas in an attempt to use them as sample cases to demonstrate trends and issues in the global forms of digital governance. Of focus in the legal analysis are the international human rights instruments, specifically the International Covenant on Civil and Political Rights (ICCPR) and the Universal Declaration of Human Rights (UDHR) and other regional legislation like the EU Digital Services Act[13]. The methodology used in the research process is doctrinal and comparative and mainly utilizes agreement law, legal case law, legal literature, and official platform transparency reports, among other materials. It does not involve research using empirical data collection and interviews. Weaknesses lie in the fact that both legal systems and policies of social media platforms are developing very quickly, and, consequently, some of the results are likely to be obsolete in a short period of time. Also, access to internal, proprietary data of large technology companies is also highly restrictive, which might limit the ability to understand some of the aspects of content moderation and enforcement behavior. Neither does the research go into

[13] Kulesza, J. (2024). Human Rights and Social Media: Challenges and Opportunities for Human Rights Education. *Polarization, Shifting Borders and Liquid Governance*, 139.

detail covering all jurisdictions all across the world but rather focuses on major, reflective areas of interest to the research in order not to lose depth and clarity of analysis.

### 1.9 Structure of the Dissertation

This dissertation has been divided into five major chapters, which are structured in such a way that they address critical elements of the research question. Chapter One will bring up the topic, describe the main research questions, explain the methodology, and provide background in which the research will take place. Chapter Two gives the in-depth analysis of the legal framework of freedom of expression that is governed by international law, giving consideration to the ICCPR along with other instruments. It also uses theoretical approaches in the form of the Mill Harm Principle and the Habermas Public Sphere to establish the ground for the analysis. Chapter Three discusses the different types of social media censorship, the public and private actors and different laws and policies considered to justify censorship of online speech. The fourth chapter is a critical analysis of the current practice of censorship in the various jurisdictions considered, the extent to which they comply with international standards of law and the effects they have on the various interests. Chapter Five contains the policy suggestions on the proper balance between harm prevention and the protection of the fundamental rights and the general conclusions of the study. This format guarantees the consistent development of the analysis executed at the level of a legal analysis of proposals that can be implemented into reform.

## 2.0 Definitions and Theoretical Framework

- **Censorship:** The act of prohibition or control of speech, media, or information by the state or other private entities on the basis of being harmful or illegal or against conformity to what is considered to be correct or standard.
- **Content Moderation:** Procedures and policies platforms employ to check, eliminate, or limit the user-created content that goes against the policies or laws.

- **Freedom of expression:** The legal and ethical right of communication of every type of idea or information and the right to solicit, receive, and communicate it, but with some limitations to international law.
- **Platform Governance:** The policies and procedures by which the rules about user behavior and content are established, enforced, and varied on digital platforms.
- **Algorithmic Moderation:** The enforcement of automated measures and artificial intelligence on the identification and regulation of the presence of potentially violative online content.
- **Proportionality, Necessity, and Legality:** Standards of Article 19 ICCPR that any limitation to the freedom of speech should be legal, the purpose of which should be justified and proportionate.
- **Harm Principle:** Mill The harm principle is a philosophical theory that an individual freedom can only be limited to prevent hurting other people[14]. The Public Sphere of Habermas: This is an imaginary construction that explains a place where people can have a free and democratic public discussion that is essential to sound governance (O Mahony).
- **Proportionality (Human Rights Law):** The doctrine that the restriction of any rights should be as small as possible, only when its objectives are legitimate[15].

[14] Folland, A. (2022). The Harm Principle and the nature of harm. *Utilitas*, *34*(2), 139-153.

[15] Pozsár-Szentmiklósy, Z. (2023). The role of the principle of proportionality in identifying legal capacity to fundamental rights. *Studia iuridica lublinensia*, *32*(5), 333-358.

# CHAPTER TWO: INTERNATIONAL LEGAL FRAMEWORK FOR FREEDOM OF EXPRESSION

## 2.1 Introduction to International Legal Standards

The freedom of expression is sometimes considered to be the pillar of democratic society and the fundamental precondition of the achievement of other human rights. It, the right to freely seek, receive, and impart information, is guaranteed in some of the fundamental international legal instruments like the International Covenant on Civil and Political Rights (ICCPR) and the Universal Declaration of Human Rights (UDHR) and contributes not only to individual self-determination but also to the freedom of a general population discourse. As the world gets more digitalized, and as social media have turned into the main areas of dialog, protest, and debate, it is crucial to analyze how international law safeguards and restricts the freedom of expression[16].

The main role of this chapter is to set the basis of a legal and theoretical framework that is required to analyze the impacts of social media censorship on the freedom of expression. It pays specific interest to the duties and boundaries articulated in the international human rights law, considering the ways in which those standards are applicable in the context of digital spaces[17]. Other important theoretical frameworks embedded in the chapter include John Stuart Mill's harm principle, which suggests that freedom of speech should never be curbed unless it is aimed at harming others and Jürgen Habermas's theory of a public sphere, which suggests the importance of open communication in the justification of democratic politics[18]. The principle of

[16] Koltay, A. (2021). The protection of freedom of expression from social media platforms. *Mercer L. Rev.*, *73*, 523.

[17] Shany, Y. (2023). Digital rights and the outer limits of international human rights law. *German Law Journal*, *24*(3), 461-472.

[18] Susen, S. (2023). A new structural transformation of the public sphere? With, against, and beyond Habermas. *Society*, *60*(6), 842-867.

proportionality in the law of human rights is examined as well as a main instrument of interpretation: any limitation on expression must be lawful, necessary, and proportional.

This chapter sets the stage by basing the discussion on these legal and philosophical principles and, as a result, sets the stage for Chapter Three, in which the actual workings of censorship will be examined, taking into consideration the international norms that will be discussed in Chapter Four. This context will buttress the larger purpose of providing in the dissertation the middle-ground view between freedom and regulation of speech in an age of the Internet.

## 2.2 Analysis of Key Instruments

### 2.2.1 Defining Freedom of Expression in International Law

The right of freedom of expression is well established as one of the fundamental rights shared by all human beings, as this is very vital to the operations of any democratic society. In Article 19 of the International Covenant on Civil and Political Rights (ICCPR), this right is formally incorporated by granting all persons the right to freely seek, receive, and impart information and ideas of all forms without any limitation based on frontiers (UNGA 1966). The right to freedom of opinion and expression is also embodied in the Universal Declaration of Human Rights (UDHR), which was undertaken in 1948, as a key right of those individuals to whom the right is due (UNGA 1948).

These fundamental tools support the idea that free communication is not only a key to individual freedom but also to the capacity of societies to make decisions, govern, and execute checks, which may stand on the authorities. These provisions, as Nowak and Birk put it, are the spine of a legal order that is meant to protect against any overreach by the government and against

any such voice being suppressed[19]. With the advent of the digital age, the salience of such guarantees has increased further, as opinionated discussion and activism in online forums have now become the world public sphere.

### 2.2.2 Article 19 of the ICCPR: Rights and Permissible Restrictions

The basic international assurance regarding expressive freedom is given in article 19 of the ICCPR, the area of international law considered to be a central guarantee of this right, although, at the same time, this right is not absolute. The provision is designed to provide broad protection in paragraph 2, which is ensured with paragraph 3, which enables states to restrict the freedom by law only provided it is in the interest of a legitimate aim and necessary and proportionate in a democratic society. According to General Comment No. 34 of the United Nations Human Rights Committee (UNHRC), permitted reasons to limit certain rights are respecting the rights or reputations of other people and protecting national security, public order, or public health or morals.[20]

More importantly, any limitation should be limited enough and non-discriminatory as well as be a minimally intrusive tool[21]. Limitations that are too broad or ill-defined, as are those criminalizing so-called fake news, are at risk of contravening the requirements of the ICCPR by

[19] Birk, M., & Nowak, M. (2020). An overview of international protection. *Research Handbook on Torture*, 80-105.

[20] de Zayas, A., & Martín, Á. R. (2012). Freedom of opinion and freedom of expression: some reflections on General Comment No. 34 of the UN Human Rights Committee. *Netherlands International Law Review*, *59*(3), 425-454.

[21] Bulman-Pozen, J., & Seifter, M. (2023). State Constitutional Rights and Democratic Proportionality. *Columbia Law Review*, *123*(7), 1855-1928.

supplying too much discretion to the authorities[22]. The proportionality principle will therefore prevent unjustifiable censorship and implies the need to balance interests in favor of the freedom of expression and the opposing interest in the society.

### 2.2.3 UDHR, Soft Law, and Complementary Instruments

Although the ICCPR is a legally binding treaty, the UDHR has become an effective soft-law tool, which has had an influence on international expectations as well as national constitutions (Wagner, 2023). The UDHR Article 19 includes the text, which was borrowed by subsequent treaties, that the freedom of expression entails the right to hold opinions as well as to seek, to receive, and to impart information and ideas in any media, without any interference with or in regard to frontiers (UNGA 1948). Other normative instruments include the UN Special Rapporteur on Freedom of Expression, as well as the so-called Joint Declarations to which international and regional mandate-holders have contributed, that emphasize the issues of legal clarity, necessity, and proportionality in regulating speech online[23].

These principles are underscored by regional instruments, e.g., by the European Convention on Human Rights (ECHR) Article 10 and the African Charter on Human and Peoples Rights Article 9, in which they are typically modified to incorporate historical and even legal peculiarities. Regional principles, such as those in the digital age, have elucidated the duties of states and platforms in the digital age regarding transparency, accountability, and due process over regulating online speech[24].

---

[22] Gielow Jacobs, L. (2022). Freedom of speech and regulation of fake news. *The American Journal of Comparative Law*, *70*(Supplement_1), i278-i311.

[23] Barata, J. (2024). The Future of Free Speech: Old Threats and New Challenges.

[24] Koltay, A. (2021). The protection of freedom of expression from social media platforms. *Mercer L. Rev.*, *73*, 523.

### 2.3 Judicial Interpretations of Freedom of Expression in Digital Contexts: Analysis of Key Cases

The European Court of Human Rights in Handyside v. Freedom of Expression in the United Kingdom (1976): The case espoused that ideas that are offensive, shocking, and disturbing are covered under the freedom of expression, but in that it should be proportional following the principles; based on the law, taught a legitimate goal, and required in the democratic style of society[25]. This applies to moderating the platforms and they should have a clear rationale on why the content has to be removed. In Sunday Times v. Clarifying that prior restraints, including content de-platforming, should only be used in cases where there is a pressing social need requiring it and must be proportionate, the ECtHR provided a framework to be used when assessing social media censorship[26].

Delfi AS v. Estonia (2015) considered the question of intermediary liability and concluded that platforms can be held responsible and liable for unlawful content provided by the users when notified and do not take measures against it, although limitations are to be specific not to create the chilling effect.[27] The African Court's Lohé Issa Konaté v. Burkina Faso (2014) held criminalization against defamation as not proportionate but civil remedies and this situation can be applied to overbroad use of enforcing digital[28].

#### 2.3.1 Human Rights Committee Views—General Comment No. 34 and Communications

Article 19 of the ICCPR, interpreted by the UN Human Rights Committee, issued a so-called General Comment No. 34 declaring again that any restraint of the freedom of expression

[25] Echr. (n.d.). *HUDOC - European Court of Human Rights*.
[26] Columbia Global Freedom of Expression. (2023, November 2). *The Sunday Times v. United Kingdom - Global Freedom of Expression*. Global Freedom of Expression.
[27] Columbia Global Freedom of Expression. (2023b, December 8). *Delfi AS v. Estonia - Global Freedom of Expression*. Global Freedom of Expression.
[28] Columbia Global Freedom of Expression. (2018, August 23). *Lohé Issa Konaté v. The Republic of Burkina Faso - Global Freedom of Expression*. Global Freedom of Expression.

should provide strict legality, necessity, and proportionality conditions[29]. Through its communications (e.g., Toonen v. Australia, Communication No. 488/1992), the Committee has struck down over-broad or extremely vague legislation, to the effect that widely drawn restrictions on expression, including those that criminalize the dissemination of that which is considered to be, or found to be, offensive or false, have the propensity to allow the arbitrary restriction of the freedom of expression. Digital governance has much to do with the jurisprudence of the Committee, where the state as well as the privately regulated text could not appear so obvious or predictable to just follow[30].

A combination of these precedents and doctrinaire interpretations leaves no doubt as to where the boundaries of justifiable restrictions of even online speech lie, as far as international law is concerned. They also stress that any limitation should be based upon law, should have a strong purpose, and should be precise and necessary as well as proportionate. The same principles form the crux of the ongoing discussions regarding the legality of imposing censorship onsocial media and whether the current platform or governmental activities are subject to the international standards.

### 2.4 Permissible Restrictions and the Proportionality Principle

#### 2.4.1 Legal Standards: Legality, Necessity, and Proportionality

In as much as freedom of expression forms one of the keystones of democratic society and a universal human right under international law, it has been articulated that as a human right, freedom of expression is never absolute. Article 19(3) of the International Covenant on Civil and Political Rights (ICCPR) grants states the freedom to restrict, however, only under the conditions of strict cumulative satisfaction: it should be offered by law (legality), have a legitimate purpose

[29] UN Human Rights Committee (2011). General Comment No. 34, CCPR/C/GC/34.

[30] Refworld - UNHCR's Global Law and Policy Database. (2024, February 11). *General comment no. 34, Article 19, Freedoms of opinion and expression*. Refworld.

(with reference to the defense of national security, the order of society, or the rights of other individuals), and by necessity and proportionality pursue this purpose[31]. The quality of legality requires that the limitation be provided through specific law, which is easy to understand and/or grasp, and cannot be arbitrarily or discriminatively applied[32]. The necessity principle demands having a so-called pressing social need; that is, due to a real and imminent threat, the restriction is the only means of countering the threat, which cannot be somehow less invasive.

In the end, proportionality obliges states, and more and more non-state actors, to make sure that the means of restraint is the least intrusive to achieve the interest of legitimate purpose and the nature of the right to free expression[33]. General Comment No. 34 given by the United Nations Human Rights Committee gives authoritative interpretation in pointing out risks about vague or overbroad rules[34]. The Committee makes it clear that they should not be based on vague grounds like national security, but rather that measures based on such grounds like national security, grounds of public order, grounds of public morals and so on should be shown in a certain specific and contextual manner, that this restriction is necessitated and is proportional to a democratic society.

### 2.4.2 Judicial and Interpretative Practice

Regional and international courts have been important in filling out these standards. The European Court of Human Rights (ECtHR) has repeatedly stated that the proportionality-oriented

---

[31] Birk, M., & Nowak, M. (2020). An overview of international protection. *Research Handbook on Torture*, 80-105.

[32] Jamshidi, M. (2021). The Discriminatory Executive and the Rule of Law. *U. Colo. L. Rev.*, *92*, 77.

[33] Herrenberg, T. (2023). Freedom of Expression. In *Encyclopedia of the Philosophy of Law and Social Philosophy* (pp. 1031-1036). Dordrecht: Springer Netherlands.

[34] UN Human Rights Committee (2011). General Comment No. 34, CCPR/C/GC/34.

approach to the limitation is prevalent through the European Convention Article 10. In Handyside v. United Kingdom (1976), the Court famously held that freedom of expression extends even to ideas that may "offend, shock, or disturb," clarifying that only restrictions justified by a “pressing social need” may be permitted. Later, in Magyar Jeti Zrt v. Hungary (2018), the ECtHR touched upon intermediary liability, acknowledging that it is a more deserving case of expression created on the Internet when the restrictions adopted cannot be considered narrowly focused. Other regional courts have contributed to evolving this doctrine.

In cases like Herrera Ulloa v. The Inter-American Court of Human Rights, among others, interpretation of the rule was given. Costa Rica (2004) reiterated that restrictions have to be shown at all times to be absolutely necessary and limited to the necessary extent at all instances. A development of national-level jurisprudence inkeeping with the digital reality is also in front; the example of the German Federal Constitutional Court in Bund fur Geistesfreiheit Munchen v. It is clarified that the moderation by the private platforms, in instances where they operate as quasi-public areas, also has to meet the proportionality principles of the constitution[35].

### 2.4.3 Recent Developments and Policy Frameworks

Law and policy frameworks are still adjusting to a fast increase in the number of digital platforms. This trend can be seen in the form of the EU Digital Services Act (DSA), which was put in place in 2022 and injects transparency, due process, risk assessment, and proportionality directly into the architecture of the content moderation structure. DSA creates a duty on the platforms to clearly and publicly disclose the policies and criteria regarding moderation, be able

[35] Codagnone, C., & Weigl, L. (2023). Leading the charge on digital regulation: The more, the better, or policy bubble?. *Digital Society*, *2*(1), 4.

to explain restrictions on the content, and present substantive grounds of appeal[36]. At the global level, the recent report of the UN Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression (A/76/258) expressly acknowledged the increasing dominance of the tech giants and warned that the human rights commitments of the state cannot be outsourced. Regulation of online space by both states and by the companies must always be consistent with the requirements of the legality, necessity, and proportionality of the ICCPR.

### 2.4.4 Application to Social Media Platforms: Practices and Challenges

When these principles are expanded to the sphere of social media, it becomes apparent that there are additional peculiarities. However, unlike states, platforms, such as Meta (Facebook) or X (formerly Twitter), do not formally participate in the treaties on human rights; however, their moderation policies can have the same effect as state censorship does, at least the broadly understood one and the inconsistent one[37]. Another instance is the 2022 Transparency Report by Meta, which showed that 43 percent of the content removals were automated, which is a matter of concern in regard to accuracy and proportionality[38]. In further cases, ICCPR can be breached by overly targeting marginalized communities, including that in Nigeria with the Twitter ban in 2021, as political material was banned without sufficient reasoning[39].

---

[36] Filatova-Bilous, N., Tsuvina, T., & Karnaukh, B. (2023, December). Digital Platforms' Practices on Content Moderation: Substantive and Procedural Issues Proposed by DSA. In *Conference on Integrated Computer Technologies in Mechanical Engineering–Synergetic Engineering* (pp. 196-207). Cham: Springer Nature Switzerland.

[37] Douek, E. (2021). Governing online speech: From" posts-as-trumps" to proportionality and probability. *Colum. L. Rev.*, *121*, 759.

[38] Meta. (2022). *Transparency Report 2022*.

[39] Griffin, R. (2023). Rethinking rights in social media governance: human rights, ideology and inequality. *European Law Open*, *2*(1), 30-56.

Social media platforms are likely to be based on terms of service and secretive moderation algorithm systems and few external controls and legal responsibilities. Members of the academy have been advancing the idea that this privatization of censorship threatens to undercut these intended protections of international law—particularly because vague or broadly framed content regulations can have chilling effects on protected speech, particularly on the speech of dissenters and the less powerful[40]. Specifically, the UN Special Rapporteur demanded that technology companies apply the human rights due diligence approach to their governance and that states enact laws specifying the minimum standards of transparency, consistency, and redress.

### 2.4.5 Scholarly Critiques and Ongoing Challenges

Much literature has popped up concerning the inability of most modern restriction regimes, whether governmental or platform-based, to satisfy the proportionality and legality tests or requirements imposed by Article 19(3) ICCPR. Researchers point out that much legislation is currently aimed at combating online harms (hate speech, misinformation), which is formulated in excessively wide or vague laws, allowing them to remove too much legitimate speech[41].With no distinct meaning behind the concept of what may be considered harmful or dangerous information, the users may censor themselves beforehand, fearing punishment and oppression, which leads to the oppression of normal discourse and activist speech[42]. Lastly, the weak judicial scrutiny or the

---

[40] Suzor, N., & Gillett, R. (2022). Self-regulation and discretion. In *Digital platform regulation: Global perspectives on internet governance* (pp. 259-279). Cham: Springer International Publishing.

[41] De Gregorio, G., & Dunn, P. (2022). The European risk-based approaches: Connecting constitutional dots in the digital age. *Common Market Law Review*, *59*(2).

[42] Glennon, M. J. (2024). *Free Speech and Turbulent Freedom: The Dangerous Allure of Censorship in the Digital Era*. Oxford University Press.

independent review of the decisions made about social media content produces more gaps in accountability that erode the potential of securing the fundamental rights in the virtual world[43].

### 2.4.6 Conclusion

The legality of restrictions to freedom of expression in the digital era is therefore not only about doctrinal conformity to the tests of legality, necessity, and proportionality but also about how searchable, accountable, and predictable such restrictions are by states and by non-state actors controlling digital platforms, to which criteria they are applied, and to which data. However, despite legal policy shifts and new jurisprudence in this area, as the current case law suggests, there is an immediate necessity and an opening to helping guarantee that the digital speech adjudication does indeed conform to the sound protection terms found in international human rights legislation.

## 2.5 Theoretical Frameworks

Strong legal critique of social media Censorship presupposes consideration of major theoretical approaches that define legal and, on the philosophical level, free speech. Three of these—the harm principle agreed upon by Mill, the public sphere developed by Habermas, and the proportionality principle articulated in human rights law offer priceless sets of lenses to determine the overall social condition of limiting the online expression enforceability. The theories do not only inform the interpretation of law but also enlighten the understanding of how censorship is disproportionately felt by different stakeholders, including the marginalized community.

### 2.5.1 Mill's Harm Principle

John Stuart Mill's classic harm principle, articulated in On Liberty, remains foundational for debates about the limits of free speech. Mill believed that any form of individual liberty was

[43] Flew, T. (2023). Policy futures for digital platforms. In *the sage handbook of the digital media economy* (pp. 543-568). SAGE Publications Ltd.

only supposed to be curtailed when it resulted inactual harm to others and the moral or paternalistic sources were not to be used as a means of justification of censorship in any case[44]. The harm principle is commonly used in the modern debate on social media, where it may be cited that users must be moderate in their content to prevent violence, discrimination, and direct threats. However, its application is contentious because the interpretation of "harm" is far from settled, particularly in the digital age, where potential harms can range from psychological injury to societal destabilization[45]. For platform governance, invoking Mill's threshold highlights both the necessity of preventing real danger and the risk of overreach if harm is too broadly defined. As an example, the policy implemented by X to delete harmful misinformation has resulted in the removal of legitimate activist posts, which makes its proportionality questionable (X Transparency Report, 2024).

### 2.5.2 Habermas's Public Sphere Theory

The theory of the public sphere by Juergen Habermas provides sociological and democratic context upon which the meaning of digital spaces can be understood. The concept of the public sphere created by Habermas was a place where people could unite, critically discussing issues without being subjected to economic and political influence[46].Social media sites are a current derivation of the public sphere that create concerns regarding inclusion, transparency, and the

[44] Bell, M. C. (2021). John Stuart Mill's harm principle and free speech: expanding the notion of harm. *Utilitas*, *33*(2), 162-179.

[45] Geerligs, P. R. JS Mill: Speech, Harm, and Progress.

[46]O'Mahony, P. (2021). Habermas and the public sphere: Rethinking a key theoretical concept. *European Journal of Social Theory*, *24*(4), 485-506.

effect of censorship oncommon reasoning[47]. Censoring, either through government interference or through freedom of speech policies of the individual media platforms, will denude democratic discussion by splitting the audience and erasingmarginalized voices[48]. In the case of the Twitter ban in Nigeria during 2021, the activists were silenced, which led to the violation of democratic deliberation, an aspect that is addressed in this theory of Habermas[49].

### 2.5.3 Proportionality in Human Rights Law

With the balancing of competing interests, the legal definition of proportionality has taken center stage in the International Human Rights Law, like keeping harm at bay and protecting free speech. The concept of proportionality gained its roots in the European constitutional jurisdiction and involves three groups of analysis, including suitability, necessity, and balancing of benefits and compensations to the basic rights[50]. In social media censorship, proportionality plays a crucial role as an indispensable mechanism to rule whether the restrictions on content in the platform may be justified and limited enough to achieve the objectives of restricting platforms, offering a guided procedure that can be followed to consider whether the eliminations stop a tangible injury and do

[47] Makwudo, K. K., & Emmanuel, N. A. (2025). SOCIAL MEDIA AS THE NEW AGORA: A HABERMASIAN INQUIRY INTO THE PUBLIC SPHERE AND DELIBERATIVE DEMOCRACY IN THE DIGITAL AGE. *Trinitarian: International Journal Of Arts And Humanities*, *1*(1).

[48] Eisenegger, M., & Schäfer, M. S. (2023). Reconceptualizing public sphere (s) in the digital age? On the role and future of public sphere theory. *Communication Theory*, *33*(2-3), 61-69.

[49] Elmimouni, H., Rüller, S., Aal, K., Skop, Y., Abokhodair, N., Wulf, V., & Tolmie, P. (2025). Exploring Algorithmic Resistance: Responses to Social Media Censorship in Activism. *Proceedings of the ACM on Human-Computer Interaction*, *9*(2), 1-24.

[50] Galetta, D. U. (2022). The EU law principle of proportionality and judicial review: its origin, development, dissemination and the lessons to be learnt from the EU Court of Justice.

not intrude on speech further than necessary[51]. Proportionality also triggers discretion regarding the real consequences of the regulation of digital regulation on weaker populations, requiring the demonstration that the limited restriction is not made arbitrarily or is not disproportionate.

### 2.5.4 Relevance for Censorship's Impact on Stakeholders

As a whole, these frameworks highlight the consequences as well as tradeoffs of online speech regulation. The harm principle offered by Mill establishes the restrictive baseline of any type of interference and guarantees that insufficient or rather speculative arguments of harm do not support blanket censorship. As an example, algorithmic moderation implemented in social sites such as YouTube has been demonstrated to discriminately mark content that belongs to minority creators, making them more difficult to see[52]. Considering social media as a Habermasian system of the social *public sphere* once again succinctly notes the hazards of proper moderation policies disproportionately suppressing, gagging, or stiflingcritics, activists, or minorities with serious justice implications[53]. The standard of proportionality also offers a talismanic legal flight instrument to examine whether indeed content removals or prohibitions achieve this equilibrium of legitimate goals and the right to speak, one that is discussed empirically and doctrinally in much later chapters. The theoretical perspectives will support further assessment of the implications of legal norms and platform practices on the groups of stakeholders, especially during politically or socially high-stakes debates.

---

[51] *Glad Mills A Contractual Approach to Social Media Governance | Yale Law & Policy Review*. (n.d.).

[52] Leerssen, P. (2023). An end to shadow banning? Transparency rights in the Digital Services Act between content moderation and curation. *Computer Law & Security Review*, *48*, 105790.

[53] De Winkel, T. (2023). Fringe platforms: An analysis of contesting alternatives to the mainstream social media platforms in a platformized public sphere.

## 2.7 Platform Governance and Privatized Regulation

### 2.7.1 Defining Platform Governance

Platform governance refers to the policy, rules, and enforcement system with which social media businesses manage user activities and reactions on their territory. Platform governance is not the classic state regulation because this is a type of so-called private ordering, as in this case, powerful technology giants, including Meta, X (formerly Twitter), and YouTube, decide what can be considered acceptable speech and what can not, and this is far more driven by internal business reasons or worldwide market realities rather than state-imposed duties and responsibilities[54]. Since these firms have developed into regulators of the online discourse, their ability to control, allow, or block online speech has surpassed both national and international law[55].

### 2.7.2 The Accountability Gap: Human Rights and Platform Power

The unnecessary disconnection between the shared responsibility to international human rights law is a significant issue of privatizing digital speech rules. Although the governments are guarantors of the agreements, including the ICCPR, the platforms do not form the subject of such legal obligations, and they get a lot of room to set the content restrictions and control user speech through their principles[56]. The literature suggests that platform choices can be broad and arbitrary in their effects on the commons by crushing legal dissent or by squelching essential information with no explanation of why and no avenue of appeal[57]. The problem is high, especially among the vulnerable and marginalized communities, because their speech would be mostly vulnerable to automated removals or lopsided application[58].

---

[54] Popiel, P., & Sang, Y. (2021). Platforms' governance: analyzing digital platforms' policy preferences. *Global Perspectives*, *2*(1).
[55] Gerrard, Y. (2022). Social media moderation: The best-kept secret in Tech. In *The social media debate* (pp. 77-95). Routledge.
[56] Bashir, S., Zakir, M. H., Khan, S. H., & Ibrahim, S. (2025). The Impact of Social Media on Freedom of Speech and Privacy Rights. *Journal of Regional Studies Review*, *4*(1), 304-315.
[57] Kumar, A. M., & Gupta, S. (2023). Governance of social media platforms: A literature review. *Pacific Asia Journal of the Association for Information Systems*, *15*(1), 3.
[58] Schramm, M. (2024). Platform Administrative Law A Research Agenda. *Available at SSRN 4898542*.

### 2.7.3 Transparency and Accountability: Recent Developments

The demand for transparent, enforced regulations of moderation and powerful user appeal structures has found its place at the top of modern-day regulation and activism. As researchers have pointed out, opaque systems of content moderation systems, where decisions are made by a computer algorithm or moderator irreversibly and largely inexplicably, erode not only the trust of the people but also the freedom of speech[59]. Recent empirical works have revealed that poor transparency and carelessness of platforms to create meaningful ways of redress for their users make the perceived illegitimacy of their governance even worse[60]. Even the policy initiatives like the Digital Services Act of the European Union have only started to press the demands of openness and procedural fairness, and they have limited scope of application and enforcement across jurisdictions[61].

### 2.7.4 Ongoing Debates and Future Directions

The privatization of digital governance creates urgent concerns regarding the appropriate actors that need to be in place in order to protect the edges of public speech and what processes are required in order to achieve accountability and fairness as well as observance of human rights. Certain authors also support young killing by using legally enforceable human rights-by-design frameworks in the governance of digital platforms and making the core values of human rights, such as proportionality, necessity, and legality, part of the platform standards[62]. Other solutions entail the creation of autonomous oversight correspondents with investigatory and corrective rights over platform opinion, organizations that would reflect the ombuds systems investigated in the

---

[59] Trithara, D. (2024). Agents of platform governance: Analyzing US civil society's role in contesting online content moderation. *Telecommunications Policy*, *48*(4), 102735.
[60] Carman IV, E. F. (2024). Controlling the Narrative: How Social Media Companies Exploit Section 230 Immunity to Censor Online Speech. *Miss. LJ*, *94*, 599.
[61] Bollinger, L. C., & Stone, G. R. (Eds.). (2022). *Social media, freedom of speech, and the future of our democracy*. Oxford University Press.
[62] Kaminski, M. E., & Malgieri, G. (2024). Impacted Stakeholder Participation in AI and Data Governance. *Forthcoming on Yale Journal of Law and Technology (2024-2025), U of Colorado Law Legal Studies Research Paper*, (24-23).

world of public administration but adapted to the online domain[63]. With platforms ultimately evolving as inalienable places of democratic activities and activism, the need to practice rights-respecting and transparent governance will rise.

**2.8 Chapter conclusion**

In this chapter, the legal and theoretical backgrounds to the effect of social media censorship have been laid, which are international in nature. Through analyzing such important documents as Article 19 of the ICCPR and the UDHR, as well as judicial interpretations such as Handyside v., one can find relevant insights that can be adapted to be included into the law. United Kingdom and Delfi AS v. As can be seen in Estonia, freedom of expression is a pillar of democratic societies but is limited by precisely described restrictions based on legality, necessity, and proportionality. The need of both governments and online companies to introduce speech restrictions that are transparent, accountable, and as less intrusive as possible is emphasized in these standards strengthened by regional systems and developing policies, such as the Digital Services Act introduced by the EU.

The theoretical perspectives of Mill Harm Principle and Habermas Public Sphere define the thin line of balance between the avoidance of harm and the necessity of open discussion in the digital world. Nevertheless, the social media outsource content moderation to third parties, creating massive problems, such as unpredictable enforcement, responsibility, and the overburden on marginalized populations. These concerns and the fact that there are no direct human rights commitments applying to non-state actors introduce a gap in governance that discourages the strength of protections introduced by the international legal system. With social media sites further

[63] Enkin, E. (2021). The role and purpose of Ombudsmen in a global media world. In *Handbook of global media ethics* (pp. 107-121). Cham: Springer International Publishing.

becoming the new version of the public sphere, their policies regarding its governance should be set through the means of proportionality, transparency, and fairness to guard democratic activities and basic rights. The current analysis will lead to the next chapters that will discuss the ways in which these legal and theoretical norms are realized or undermined in practice and suggest possible reforms that will help fill in the gap between digital governance and human rights requirements.

# CHAPTER THREE: COMPARATIVE LEGAL ANALYSIS OF SOCIAL MEDIA CENSORSHIP IN NIGERIA, THE UNITED STATES, AND THE EUROPEAN UNION

## 3.1 Introduction

In extending the doctrinal basis laid down in Chapter 2, which reviewed international standards of human rights, including Article 19 of the International Covenant on Civil and Political Rights (ICCPR), the Universal Declaration of Human Rights (UDHR), and the European Convention on Human Rights (ECHR), this chapter differs in that it intends to implement a meticulous comparative law study of the regulation of social media censorship in Nigeria, the United States, and the European Union. It assesses how their respective legal systems measure up against international human rights law and especially how their legal systems comply with Article 19 of the International Covenant on Civil and Political Rights (ICCPR). Analysis is devoted to the different means the censorship of social media may occur, including the elimination of the content, deactivation of the accounts, and the usage of the algorithms appealing to both the state authorities and the privately owned platforms.

### 3.1.1 Rationale for Jurisdictional Selection

This selection of case studies, Nigeria, the United States, and the European Union, is aimed at diversification because the variety of legal traditions, political backgrounds, and regulatory philosophies should determine the approaches to the regulation of social media. Nigeria offers a revelation of the challenges of emerging democracies that have to contend with the political pressure and the dynamic digital legislations. An example of such an environment is the United States, where the rights to free speech have great constitutional safeguards, but where influential and, in many regions, immunized providers of technology services exist as well (Gielow). The European Union is a supranational form of regulation, which is based on human rights-based regulation and modern-day legislative regulatory equalities like the Digital Services Act.

### 3.1.2 Methodology

The doctrinal legal research methodology employed in this chapter involves primary law and secondary law (legislation, judicial decisions, and regulatory instruments) as well as academic and official commentary and disclosure in platform transparency reports. It uses a comparative approach to law in that it compares regulatory regimes to detect similarities, contrasts, and best practices. The analysis strictly contrasts these domestic and regional standards with an international standard qua international law incorporated in various means of international law, most especially ICCPR Article 19 and the authoritative interpretation enshrined in General Comment No. 34. This normative framework also confirms that evaluation will be done on the firm ground of accepted principles of legality, necessity, and proportionality.

### 3.1.3 Structure Preview

This chapter is structured as follows: The chapter starts with Section 3.2, which overviews the general legal and constitutional regulations that frame the freedom of expression within the chosen jurisdictions. Section 3.3 discusses the different types of censorship and censorship mechanisms of social media as well as the most important stakeholders. Section 3.4 reviews the popular legal grounds, which are used to justify restrictions of content. Section 3.5 evaluates the conformity of these censorship practices with international human rights law. In the 3.6 paragraph, the authors write about the direct effects of these measures on such stakeholders as journalists, activists, and the regular users. Whereas Section 3.7 identifies the lessons to be considered in general and incurs new trends in regulation, Section 3.8 concludes with a summary of the comparative findings and preconditions the following chapter.

## 3.2 Legal and Constitutional Frameworks for Freedom of Expression

### 3.2.1 Nigeria

The constitutional and legal systems of Nigeria lay the grounds to ensure freedom of expression but they also contain considerable restrictions that are important to consider regarding social media censorship in the sense that it implies their application in terms of rights, socially and politically (Oyinloye). The 1999 Constitution of the Federal Republic of Nigeria in s.39 (c) specifically guarantees all citizens the right of expression wherein it is also stated that all citizens have the right to hold opinions and to receive ideas and impart ideas without any interference. Only, it is not a right that is absolute; the Constitution allows limitations to be imposed on the basis of national security or maintenance of a certain level of order or even public morality. These general and imprecisely stated grounds have proved to preface government interventions that hamper free expression, especially online. One of the most important laws that govern online expression in Nigeria is the Cybercrimes (Prohibition, Prevention) Act, 2015 (Izevbuwa). Although designed to crack down on cybercrime, such as online fraud and harassing messages, the Act has been subjected to criticism due to including some excessively and ambiguously written requirements, which are potentially used to promote instead the productive exercise of arbitrary enforcement and excessive censorship. As an example, one can refer to the sections criminalizing the transfer of the “false information” or materials that can cause an annoyance to a person in a large quantity, which has been considered prone to misapplication against the voices presenting opposition and political opponents. One of the most impressive instances of digital

censorship by the state was the indefinite suspension of Twitter in Nigeria in 2021 (Uchendu). The decision was made because the government accused the particular presidential tweet of jeopardizing national security and order after removing it. This was a case of combining legislative vagueness, executive excess, and unenforceable procedural protection of online speech. It is remarkable that the prohibition was not characterized by transparent legal procedure, independent judicial review, and lastly, satisfactory redress to users with legitimate interests in the proceedings, or the matter of arbitrary restraint and the abuse of constitutional rights. In sum, although the constitutional system in Nigeria nominally guarantees the freedom of expression, the composition of the tools of the law and their application, with its sloppy wording and few procedural safeguards, is having a chilling effect on social media speech in Nigeria.

### 3.2.2 United States

The safeguards against the violation of the freedom of expression were created in the United States, where the First Amendment to the Constitution explicitly prohibits the government from enacting legislation that would suppress the freedom of speech or of the press (Balkin). This is considered one of the strongest protections in the world, with profound restrictions on government censorship even in the online world. The U.S. Supreme Court has generated a substantial amount of constitutional jurisprudence that expounds the meaning and application of the First Amendment in general and with the augmentation of emerging technologies and platforms in particular. Landmark cases such as Reno v. According to ACLU (1997), internet speech is fully protected under the First Amendment; the part of the Communications Decency Act (CDA) that aimed to regulate internet expression by addressing indecent online content was shut down and thus the internet was given the status of a unique and critical platform where free speech is the first priority (Raynor). One of the most instrumental pieces of legislation that has been used in online content moderation is Section 230 of the Communications Decency Act of 1996, which grants immunity to the internet platform against being held liable in connection to third-party content published on the respective sites. This is why the provision has played a defining role in developing the U.S. digital space, as it enables services to moderate the content thinly veiled by excessive threats to litigation. 230(c)(1) and (c)(2) give platforms the authority to take good-faith actions to filter out what the platforms find objectionable but offer these platforms the immunity that would otherwise refer to them as publishers or speakers of that material (Dickinson). The present regulatory framework has also created a persistent controversy regarding the right balance between the responsibility of platforms and freedom of speech, given that social media corporations have been accumulating enormous influence on the development of online discussions. Significant cases of judicial rulings have further elaborated the limits of free speech and content policing. In Packingham v. In the United States, in North Carolina (2017), the U.S. Supreme Court struck down a law that prevented sex offenders registered with the state from accessing social media websites, with the necessity of internet-based communication as the most basic way of realizing the freedom of speech (Aderhold). This ruling has reiterated that social media platforms are contemporary common areas, popularly known as the town squares, that should be granted strong constitutional protection against unjust bans. However, how the First Amendment can restrict the actions of private actors can be regarded as one of those controversial questions, as social media platforms are considered to be structures operated privately and are not subject to the strict interpretation of constitutional declarations in relation to the freedom of speech. Government censorship is closely regulated, but companies

that offer social media are placed in a position to make their own and apply community standards, and this has provoked issues of transparency, consistency, and accountability. Critics argue that this "private governance" creates an accountability gap, as platforms are not legally required to uphold international human rights standards or provide adequate procedural safeguards for users. Nevertheless, despite challenges that have continued to criticize and attack Section 230, it is a pillar of the U.S. mode of thinking, in that it is driven by less government regulation and intervention in online speech and more self-regulation by the internet companies themselves.

### 3.2.3 European Union

The European Union (EU) has a well-established human rights framework underpinned by the legal and constitutional framework of the freedom of expression that seeks to manage the rights of the individual against the concern of the society (Woods). This framework is based on Article 11 of the EU Charter of Fundamental Rights, according to which everyone has the right to freedom of expression, including freedom to hold opinions and to receive and impart information without interference. This is the provision that in many places is closely related to international norms of human rights protection and signifies the readiness of the EU to defend the right to free expression with clearly stated circumstances of lawful restriction that will be proportionate. Complementing the Charter is Article 10 of the European Convention on Human Rights (ECHR), which similarly enshrines the right to freedom of expression but explicitly recognizes that this right carries duties and responsibilities and may be subject to restrictions "that are prescribed by law and are necessary in a democratic society."( Marinkás) The European Court of Human Rights (ECtHR), whose mission is the interpretation of the Convention, has made landmark judgments that have guided the scope of allowable censorship. Landmark cases such as Handyside v. United Kingdom made some of the foundational principles, which restated that freedom of expression guards not only the information and the idea that receives warmth but also the information and ideas that are offensive, shock, or disturb. More recently, the court's decision in Delfi AS v. The issue of liability of people who are not part of the publishing process to defamatory user-generated content came up under Estonian law and thus we see the difficulties in balancing the freedoms of platform responsibilities and free speech in the online world. Regarding regulatory innovation, the EU has not hesitated to get involved in solving the problem of censorship in social media through legislation. The Digital Services Act (DSA) is an unprecedented regulatory package, which came into force in 2022 and is designed to standardize the requirements imposed on digital platforms to fulfill transparency and accountability requirements. The DSA brings in content moderation requirements, which means platforms must have transparent methods of content removal, user redress, and steps to increase transparency on algorithmic decisions. This legislation reflects the EU’s broader strategy to protect fundamental rights online as well as requiring a platform to effectively and proportionately address the harmful content.

Country-level regulations further illustrate the EU’s multifaceted approach. A 2018 law in Germany, the Network Enforcement Act (Netzwerkdurchsetzungsgesetz, NetzDG), mandates large providers of social media to promptly delete unlawful content like hate speech or false news, with penalties of up to 50 million euros. In addition to exerting an impact on triggering

swift platform action, NetzDG has faced criticism over allegedly encouraging excessive takedowns and not doing enough to protect the freedom of expression.

## 3.3 Forms, Mechanisms, and Actors in Social Media Censorship

The forms of effecting social media censorship are quite different in regard to jurisdiction, platforms, and forms of regulation. This section is a comparison of the most significant forms of censorship with discussions on their manifestation in various national settings and insinuations that they are lying on the surface of freedom of expression. This content varies fromexplicit state-led blockages on content to low-hanging algorithmic processes being done by privately owned tech companies. It is necessary to understand the forms to place the legal frameworks and the rationales of policy as discussed in the following sections into context.

### 3.3.1 Forms of Censorship

**Content Takedowns**

One of the most conspicuous necessarily takes the form of the content takedown. These include the deletion of certain posts, videos, or any other digital manifestations that are considered illegal or damaging according to government decision or platform rules. Consider, to take a recent example, the case of the COVID-19 pandemic and the large-scale purge of misleading health information on YouTube and Facebook, either in line with government advice or with proactive content moderation (Cortes). Jurisdictionally, the Cybercrimes Act in Nigeria has served as a justification in the takedown of politically sensitive materials, but its use is extremely vague and makes it subject to potential arbitrary enforcement. Conversely, the European Union legislatively codifies these content takedown requirements with laws like the German Network Enforcement Act (NetzDG) and Digital Services Act (DSA) that establish an obligation to take down “illegal content” within a reasonable time with the guarantee of due procedure (Bayer). Meanwhile, in the United States, content takedown is mainly in the hands of the discretionary powers allocated to the platforms by Section 230 of the US Communication Decency Act (CDA), which offers platforms immunity from liability and resorts to self-regulation.

**Account suspensions**

Suspensions and permanent bans are another broader type of censorship, which includes terminating the access of a particular user to a social media platform or the communicating capabilities of a social media platform, either temporarily or permanently (Gyetvan). This kind of censorship mutes whole user profiles and therefore is more influential than a single piece of content. Prominent ones are the account suspension of former American President Donald Trump on Twitter after the January 2021 Capitol riot, triggering legal and ethical dilemmas over the control of discourse by the privately owned texts. Nigeria Dissidents, journalists, and activists have accused platforms of locking accounts or blocking them, especially during politically sensitive times like the EndSARS protests, without providing clear explanations or effective ways to appeal(Udenze). The EU is becoming less willing to grant such prohibitions

without challenges in the system of digital rights that ensure transparency and procedural fairness.

**Shadow banning and algorithmic filtering**

No less subtle, but equally decisive, is shadow banning and algorithmic filtering. Such black operations caused the content or user account visibility or distribution to be lessened without the direct knowledge or indication of the user. One of the main ways of silencing someone is shadow banning; people will not be able to reach the person because they will be deprioritized in search queries or the feed (Leerssen). Projects that employ algorithmic filtering to detect and reveal such so-called controversial or sensitive content react to platform policies and governmental demands (Sun). Although the platforms claim that these mechanisms are necessary to uphold standards within a community and keep people safe in the face of harmful content, critics point to the unequal impact on minorities, political and opinionated dissent, and less mainstream views. The issue of the duplicability of these automated processes raises issues of due process, responsibility, and the possibility of breaching international norms of human rights.

**Geo-blocking and IP-based filtering**

Geo-blocking and IP-based censorship are similar to the aspects of limiting access to specific content to some users on the basis of their geographic locations. Governments usually request such blocks to block that specific section of the content under local regulation that prohibits a certain kind of speech, whilst the platforms may use geo-blocks in order to obey the conflicting national regulatory statutes. As an example, Twitter has blocked the access to content in other localities such as Turkey, India, and Russia, where it had to comply with the local laws (Yilmaz). Such methods have also been used in Nigeria to prevent access to websites or platforms hosting criticism of government policies, an aspect that recently took place during the 2021 Twitter ban implementation that essentially became a complete geo-blocking of the country. Geo-blocking is a technically effective means of attempting to solve jurisdictional conflicts but it will result in a fragmented global internet and is likely to present a route to accomplishing censorship based on assurances of compliance with the law (Fainchtein). Geo-blocking within the EU is allowed on the basis of limited conditions and as such is still under the scrutiny of the rationality and non-discrimination procedures by the ECHR.

**Automated and AI-based moderation**

Automated and AI moderation is emerging as a new frontier in social media censorship. AI systems allow platforms to moderate the content at scale using keyword-detection and pattern-recognition methods of machine learning (Ami). The nature of this technology is fast takedown of content and the potential for false positives, in most cases infringing legitimate speech, satire, or culturally specific expression. In addition, algorithmic bias may have a disproportionate impact on the minority users, creating ethical and legal issues. There has been limited transparency on such algorithms, especially in the United States, where the platforms have reduced exposure requirements. On the other hand, the Digital Services Act of the EU directs extremely large online platforms to perform human rights risk assessments in addition to reporting algorithmic transparency so that negative effects of automated censorship are reduced

(Frosio). All these various types of censorship form an interesting picture of multi-faceted digital governance, where state control and platform policies in the hands of companies, as well as the influence of technologies, overlap to determine Internet freedom of speech. The main concern is the actors that will be carrying out such forms, be they government actors, platforms, or intermediaries, which will be critically looked at in the following subsection to contextualize the legal and normative implications of social media censorship.

### 3.3.2 Actors Involved

Social media censorship is not an outcome of one or another party but is a multistressor action between various actors such as state authorities, the platforms themselves, and third-party mediators. Actors also have different levels of control and power over what appears on social media, and initiatives are usually justified on some grounds of being in the interest of the people, being legal, or being part of the company policy. Nevertheless, the overlapping functions are the major factors that provoke key issues of transparency, legitimacy, accountability, and wisdom to define limits of power in regulating online speech in Nigeria, the United States, and the European Union.

State actors

State actors, which include the legislatures, the regulatory agencies, and the law enforcement agencies, are key players in the establishment of the formal legal and institutional structures that could authorize or stifle censorship (Oyinloye). At the most extreme end, the government in Nigeria has waded into direct intervention of online discourse, using both legislative instruments, in the form of the Cybercrimes (Prohibition, Prevention) Act, and executive orders, foremost among which is the 2021 Twitter suspension, which was passed through executive fiat and without any legal oversight. These acts exemplify how the state can use its power to curtail dissent and suppress civil discourse, usually without the procedural protections and without meaningful transparency. In contrast to the European Union, the state actors work under less chaotic parameters, as they impose such regulations as the Digital Services Act (DSA) (Vogt). The DSA determines formal requirements on platforms with respect to transparency, content moderation procedures, and due process, and such requirements are to be enforced by national regulators and the European Commission. In the United States, direct government censorship is not allowed in most situations by the First Amendment; however, more and more control over the content is established through the state actors, although indirectly (Francis). The request in congressional hearings, the communications by the executive branch, and informal pressures of platforms have been raised to question content on election integrity and public health to challenge the insidious or unofficial actions by states to discreetly or subtly influence private moderation decisions.

Private actors

The big social media platforms, in this case, Meta (Facebook, Instagram), X (previously Twitter), Google (YouTube), and TikTok, are examples of such powers of arbitration of online speech in the digital age (VL Aitken). Given the presence of Terms of Service (ToS) and Community Guidelines, such platforms have extensive discretionary authority in the removal or

demotion of content, suspension or banishment of individuals, and management of conversations that are harmful, provocative, or against their policies. Section 230 of the Communications Decency Act grants such companies immunity to third-party content and, in effect, bestows upon them quasi-governmental discretion to regulate speech with little national oversight or transparency, which has been dubbed as the power to shadow ban (Dickinson). Even though this system of law propagates a self-regulation approach favored locally, other frictions and critiques of the existence of such arbitrary or inconsistent acts of censorship have arisen. In the European Union, the regulatory model is changing with the new legislation, including the DSA, which requires transparency reports, notifying users of the content takedowns and availability of redresses. However, there are concerns about the transparency of internal decision-making and the democratic validity of platform governance because these private organizations have a vast and cosmopolitan impact. In Nigeria, platforms have to walk a tough terrain of adhering to the national laws, which might clash with the international standards of human rights, subjecting them to pressures by the state, as well as having to defer to universal standards of free expression.

**Third-party intermediaries**

**There are also third-party stakeholders such as NGOs, civil society, fact-checkers, and user-reporting that form substantial parts of the content moderation ecology alongside them. Several of these platforms take joint action with third-party fact-checking organizations, including PolitiFact, Africa Check, and Full Fact, which examine the content marked by the platform in matters concerning misinformation, hate speech, or malicious behavior(**Ünver**). These organizations frequently serve as reputable flaggers where their input may initiate faster or automatic takedown use cases. In other developing contexts (Nigeria but also other countries), partnerships with the civil society are supposed to localize the key criteria of moderation and include regional knowledge, but one is still uncertain about the independence, consistency, and accountability of these intermediaries. The use of third-party actors in both the United States and, to a greater extent, the European Union advances the speed and volume of content review capabilities at the same time it introduces multiple levels of opaque and non-state control over the information that can or cannot be disseminated online (**Heldt**). This increasing complexity makes governance arrangements and accountability systems more complicated, and it has particular political and social implications in light of the issues of who may benefit or be harmed by the decisions made to moderate the content out of the arena of public scrutiny. Generally, the overlapping institutions of the state agencies, the private platforms, and the third-party intermediaries exist at different levels and work through both legal and informal workings. States can directly or indirectly interfere; there is self-regulation among the private platforms that end up with de facto powers to censor; and third parties are commonly the key factors that act as gatekeepers, albeit having no direct responsibility. The relationships between these actors are critical aspects when it comes to a sophisticated analysis of the legitimacy, legality, and also fairness of social media censorship in and between Nigeria, the United States, and the European Union.**

## 3.4 Legal Justifications for Censorship

**The most common justification of social media censorship by the governments and the platforms is national security and preservation of order. Nevertheless, these justifications have different legal bases and usages in Nigeria, the United States, and the European Union, which portrays the differences in balancing the need to address security issues with the rights of freedom of expression.**

### 3.4.1 National Security and Public Order

In Nigeria, the national security and maintenance of order in society have been used as a blanket response that is politically charged to restrictions on content (Udeh). These justifications have been extensively used by the government in times of political protests and social agitation, e.g., the permanent suspension of Twitter in 2021, which was also narrowly portrayed as a reaction to the alleged attacks on the stability of the country. The Nigerian legislation, such as the Cybercrimes (Prohibition, Prevention) Act, is unclear enough to give law enforcement agencies freedom to limit the expression considered to be dangerous to the security, yet these provisions are often blamed on allowing the repression of the opposition and critics. The legislative framework does not provide effective procedural protection or clear-cut measures, which leads to legislation on Thursday and enforcement on Friday, which destroys constitutional guarantees of free expression. According to the First Amendment, the ability of the government to control online speech due to security reasons is limited in a direct way in the United States. The doctrinal legal complex of state action restricts the ability of those who practice censorship to official representatives of the state and not social media sites. Although there are cases when content is justifiably removed to promote national security and maintain a certain level of public order, all such cases must withstand the test of stringent constitutional scrutiny. Courts are inclined to leave only evident evidence before restrictions on speech are justified that the speech is actual and in future danger. Instead of direct censorship, the government can put pressure indirectly when it is announced to moderate their platforms or an inquiry is made in the congress. Section 230 grants platforms ample discretion over what they moderate, but even as the world becomes increasingly aware of the dangers of disinformation and abusive speech, which are correlated with security threats, there is mounting pressure on platforms, which has sometimes helped them change by reducing how lax they are. This way, the U.S. model grants robust rights to speech, and the government is strictly restricted in its censorship practices, whereas the responsibility of platforms and voluntary content takes on an important role in tradeoffs. In the European Union, the national security and the justification of the need to maintain order in the national plane undergo strict checks within a robust mechanism of human rights. According to Article 10 of the European Convention on Human Rights, expression can only be restricted on the basis of it being prescribed by law and a necessity in a democratic society. The European Court of Human Rights (ECtHR) has highlighted that restrictions of the sort should be reasonable and should be surrounded by effective checks. This balance is further institutionalized through the Digital Services Act (DSA), which forces platforms to introduce the manner of content moderation in a transparent manner, which requires justifications based on legal obligations such as combating terrorism or hate speech. The national regulators may assume the role of regulating such duties, with the ability to monitor the security requirements and the freedom of expression rights. It is a

multilayered supervision that will stop the abundance of powers and still manage threats to the public order effectively within a pluralistic legal system.

### 3.4.2 Protection of Rights and Reputations

The term social media censorship is frequently defended in the name of safeguarding the rights and reputations of people, including defamation laws, hate speech laws, and laws against disinformation. However, the legal boundaries and cultural sensibilities within which such protections are contextualized are quite different in Nigeria, the United States, and the European Union, and they echo the differences in the optics of freedom of expression and the protection of individual and collective dignity. In Nigeria, reputation is explicitly defended by constitutional and statutory means that limit the freedom of expression by prohibiting it through defamatory claims and criminalizing it. The current freedom of expression under Section 39 of the 1999 Constitution entitles everyone to the freedoms of expression and assembly and to civic participation as placed in the context of restraint within a democratic society through protection of the rights and reputations of others. The Criminal Code Act brings defamatory statements under the laws that hold a punishment of imprisonment in case of publishing of false or harmful information (Jain). Online defamation is a litigated issue and the courts have jurisdiction wherever the material on defamation is received. Vague wording of the statutes, however, specifically the words found in the Cybercrimes Act, coupled with the political background, lends to the fact that the defamation laws have the potential of being used to silence critics and opponents of state actions, thus raising the concern of chilling free speech. In the United States, the common law still hides in defamation law but with the high constitutional provisions under the First Amendment. The U.S. differentiates between classes of people, conducting those in high positions or notoriety and ordinary citizens, thus establishing a high standard on what is required of a person in a high position to show malice as demarcated to actual malice in defamation cases. Though, as a mandatory rule, the hate speech is not regulated unless it leads to or encourages the imminent lawless action, the platforms can turn over such content on a voluntary basis, addressing their ownership policies. Disinformation is coming under closer attention, particularly on issues of elections and health, although there is less governmental recourse to censorship due to constitutional constraints (Colomina). The general immunity given to platforms under the Communications Decency Act (Section 230) means that private companies can control content with a lot of freedom; however, it also results in responsibility issues. In the European Union, defamation and hate speech are strongly shielded and these same protections are frequently so high that they exceed those of the U.S. Article 10 of the ECHR allows the limitations on freedom of expression in order to safeguard the reputation or the rights of others and it is given that such limitations are done with legality and adaptation. Criminal defamation laws are still law in many of the EU member states, but the trend is set towards decriminalization as defined in international human rights advice. Under the transparency and procedural safeguard requirements set by the EU Network Enforcement Act (NetzDG) and Digital Services Act (DSA), platforms must take down illegal online content such as hate speech or defamatory content. This model indicates an inclination towards getting speech rights balanced out with the protection against injury in keeping with the cultural sensitivities and pluralistic values within member states. Altogether, although defamation, hate speech, and disinformation have become typical juristic justifications of social media censorship, the diversity of thresholds, policing, and intercultural acceptability points to the area of complication

in balancing safeguards of rights and reputations with dedication to freedom of speech in an international digital landscape.

### 3.4.3 Morality and Public Interest

Policymakers often appeal to the protection of the common morals and the general interest of the population, which is in fact extremely difficult to explain and to define, and even more difficult to implement. Standards of moral conduct are highly varied across cultures and their elastic application tends to open wider doors to regulatory overreaches and stifling of valid utterances. Restrictions existing in all three jurisdictions of Nigeria, the United States, and the European Union are morally grounded, with differences in specific restrictions defined by the governments of each. Restrictions are, however, subject to broad interpretation or interpretation that may involve implications that are questionable. As an example, the Nigerian legislature allows limits to be imposed in the name of public morality yet the scope of such prohibitions is not always clear, thus bringing about much inconsistent application that can censor speech or the views of the minorities. The US has these wider protections to speech because of the First Amendment, though morality-based speech restrictions are more cautious in the US and legal definitions of obscenity are strictly restricted (Inazu). In the meantime, the European human rights system does permit restrictions in the name of morals, yet those must be clearly defined in the law, essential, and reasonable, with the jurisprudence underlining respect of pluralistic societies. The citation of morality is widely criticized as a versatile instrument to enlist censorship beyond reasonable limits and, physically, give administrators or sites the chance to denounce unpopular or contentious speech in the name of safeguarding the communal norms. This leeway increases the chances of arbitrary requirements that compromise the clarity and predictability in the process of censorship and further complicate compliance with the norms of international human rights. Therefore, morality and public interest, although valid reasons to justify certain curbs, need careful and accurate legal policies so that they are not abused and the defensive measures given do not overreact on them and interfere with freedom of speech.

## 3.5 Assessment under International Human Rights Law

### 3.5.1 Legality

The principle of legality requires any curtailment of freedom of expression to be enshrined in law and furthermore, such limitation must be explicit enough to place the citizen in either a pleasant or unpleasant position of giving appropriate notice of what is proscribed. This once again is to ensure that persons can anticipate the consequences of their expression and it prevents arbitrary or discriminatory application. This practically implies that the laws, regulations, and platform policies that influence social media censorship decisions on content moderation ought to be open, accessible, and developed with a high degree of accuracy. Laws that are unpredictable due to a high degree of vagueness or are unnecessarily broad, like certain clauses in the Nigerian Automated Teller Mastercard (ATM) Act, do not pass this test, as they allow practices of arbitrary enforcement to exist and destroy certainty in the law (Bebeji). Conversely, the European Union has progressed on the front of legislative clarity by means of such schemes as the Digital Services Act (DSA), which outlines the procedural and substantive regulations of platforms, which is helpful in terms of legal predictability and adherence. In the same fashion, in the United States, although Section 230 of the Communications Decency Act allows platforms

wide leeway, any restrictions imposed by the government should necessarily be based on the law and defined, but mostly this applies not to the private companies themselves but to government agents.

### 3.5.2 Necessity

In addition to being lawful, restrictions are required under a democratic society; therefore, it is satisfactory that they respond to an urgent social need and the restrictions are necessary to pursue legitimate objectives such as national security, order in the country or the rights and reputations of other people. Censorship mechanisms have to pass the necessity test and so cannot be arbitrary or disproportionate to the harm they are intended to prevent(Steinhoff). To illustrate, the Twitter block instituted in Nigeria was grounded under the argument of national security yet was universally derided as not having the predicate of necessity or due process, as it was indefinite and uncheckable by the judiciary. That left by the U.S. legal system is a high standard of necessity, especially with highly secured First Amendment rights with rather strong inclinations toward free expression and injunctions that require restrictions to target genuine and imminent danger. Strict necessity found in the human rights framework in the EU also requires the courts to analyze whether and to what extent the limitations are aimed and justified. This is operationalized in the Digital Services Act, where it is made mandatory for the platforms to adopt proportionate and evidence-based moderation measures in line with the risk parameter of dangerous materials.

### 3.5.3 Proportionality

Lastly, limits should be proportionate in the sense that the measures used should be the least intrusive or restrictive to the attainment of the objective being looked to. Proportionality entails an act of weighing the right to freedom of expression against the interests of the society that is at hand(Mendoza). Blanket suspensions of accounts, broad geo-blocking, or blanket removal of speech can be judged to fail such a criterion, as they may fail to respect lawful speech and can be used to unreasonably stifle legal expression or protests. Cross-jurisdictional comparisons reveal varying levels of proportionality compliance. In the EU, in general, there is a higher degree of compliance due to the judicial control and regulations and transparency in the form of procedural fairness. The U.S. model enshrines the freedom of expression strongly and falters on the ability of the platforms to determine what moderation of their services should entail and when, which can occur inconsistently without any regulation or checks and balances. There are major proportionality issues in the censorship in Nigeria, and limiting actions have often been denounced as being too much, too politically motivated, and without any kind of protection protocol. Based on the ICCPR Article 19 and General Comment No. 34, these are some of the principles that may be regarded as a normative standard to assess the legality of censoring social media on a global level (Ayansola). They indicate all restrictions on expression must be prescribed by law, which is clear, must seek a legitimate objective, and have a necessity and proportionality to such objective. The use of such standards in comparative analysis demonstrates the loopholes and places that could be revised in the internal systems regulating online speech in the jurisdictions analyzed.

## 3.6 Impacts on Stakeholders

The effects of the social media censorship are extensive and far-reaching, affecting vast numbers of stakeholders that include the journalists and activists and the political opposition, as well as minority groups alongside the regular users. These effects extend beyond the deletion of publications or accounts of users and include freedom of expression, political viability, access to information, and democracy in Nigeria, the United States, and the European Union. The most affected and severely targeted communities are the journalists and activists. In Nigeria, there are arrests, detention, and prosecution of journalists on vague laws that include the Cybercrimes (Prohibition, Prevention) Act. As an illustration of this, investigative journalists unearthing corruption or violation of human rights have suffered victimization, including prominent cases of protracted imprisonment without trial and intimidation by the security organs. The formerly perceived space of independent journalism and activist mobilization through the internet, and particularly during the mass movements of the EndSARS, online space has become the terrain of repression, surveillance and self-censorship out of fear of reprisal. The same is happening with the journalists and human rights activists in other jurisdictions, who are thus facing some forms of content suppression as well as algorithmic invisibility or account deactivation via platforms, making their abilities to report independently and keep the powerful accountable difficult. Censorship regimes also disproportionately burden political opposition as well as the minority groups. States and social media usually go after dissenting voices, ethnic minorities, religious minorities, and marginalized groups with content deletions, bans, or shadow banning. Closures and restrictions in Nigeria that occur during incidents of political unrest involving internet shutdowns, a prohibition on social media, and selective enforcement of statutes have reduced opposition mobilization and increased inequalities within the society. In the EU and U.S., although stricter regulations are in place, there is concern that overregulation strategies silencing minority voices or political dissent are put in place that are disproportionate in favor of certain political opinions, especially when this silencing is based on opaque processes of algorithmic filtering and lack of enforcement by the platform of their own rules. This poses serious concerns related to the equal access to the digital speech and the democratic aspect of social media as the arena of democratic participation. To the common users, effects of censorship include less access to a variety of information, an inhibition on online speech, and feelings of frustration due to the lack of transparency in the process of moderation. Online politics, social life, and cultural life are undergoing everyday restrictions in the fulfillment of their discourse due to the possibility of geo-blocking and content and account suspensions in online discourse and availability of vital information. Such harms are compounded by the brevity of transparency and viable meaningful due process remedies on the part of consumers who are not always able to appeal what was done to them or their decision-making process. This erodes confidence in platforms and state governance in equal measure and may also lead to increased social fragmentation and mistruth upon users pursuing alternative and less regulated forms. One of the major and most persistent problems between jurisdictions is the aspect of transparency and due process binary to censorship activities, as well as remedies. Legal and procedural protection is low in Nigeria and most of the executive bans are issued without court supervision and have inadequate avenues of appeal. The scenario compromises the constitutional protections and international standards of human rights demanding fair procedures. In the largest region, the Digital Services Act in the European Union takes the next step, establishing higher levels of protection, such as clear notice of removals, user complaints, and transparency reports, but there are implementation issues.

Section 230 in the United States is a key reason that platforms have little accountability when it comes to how they decide what content to moderate, thus placing users in a position where they experience moderation inconsistently and without procedural rights. In a recap, like any other wavelength in the radar of social media censorship, its resultant effects echo through principal democratic entities and citizens at large, in that it compacts the freedom of expression, political participation, and access to information. The challenges necessitate improved transparency, procedural guarantees, and accountability to curb these effects and instill arespect forhuman rights in the process of censorship as well as the maintenance of open, inclusive spaces in the digital arena.

## 3.7 Lessons and Emerging Trends

Over the last few years, there has been an evolution concerning the governance of social media censorship, hence manifesting a number of important legal and policymaking trends influencing the current situation and providing suggestions about the way further regulation should be conducted in this sphere. A noteworthy trend is the increasing platform power, where Meta, X, YouTube, and TikTok have emerged as key gatekeepers to online speech. Such platforms have extreme authority over the moderation policies of the content created, the algorithms used to filter information, and the enforcement of these policies, which profoundly contribute to the global discourse. Their quasi-governmental positions bring into question urgent concerns of privacy and transparency and the democratic appropriateness of the organization of power to govern communication within the confines of a community rather than the state. Anti-platform attitude is accompanied by state retaliation and the development of new digital regulations that governments pursue to have more control over the content of the online world. An example is the passage of the landmark Digital Services Act (DSA) in the European Union, which places regulated transparency, risk assessments, and redress to user demands on very large platforms. The need to censor misinformation, hate speech, and political instability led to the enactment of several pieces of legislation, such as the law on NetzDG in Germany or in Nigeria, to put pressure on platforms to correspond to national legality levels. These legislations signify not only the defensive response to supposed malfunctions on the platforms but also a more general political agenda to control the arenas of digital life. Concurrently, this also occurs across differing regulatory philosophies, which cause frictions between state sovereignty and the transnational desire of digital platforms, making enforcement more problematic and increasing chances of splintered or overbroad censorship. The next significant trend is the increasing international demands towards the social media content governance in accordance with the human rights. It is supported by civil society organizations, international institutions, and certain governments that want principles based on a balance between freedom of expression, due process, transparency, and proportionality in its actions regarding content moderation as found in international human rights instruments like the ICCPR, as well as the UN Guiding Principles on Business and Human Rights. This movement is aimed at offsetting the excesses of the state and non-accountable private censorship by enhancing standards, codes of behavior, and multistakeholder discussions. It is emerging that policy adjustments need to imbibe human rights mechanisms to safeguard democracy-oriented participations, particularly where there are populations (including the disadvantaged people who happen to be left behind by the current moderating arrangement) that require such security.

In the future, the idea of regulating social media content and having multilateral control of the content looks to be at the forefront of policy discussions. The scale and consequence of platforms have been unprecedented and require coordinated actions that cross national boundaries, which are not being reached in a global consensus in any way. The debate about means of multilateral cooperation persists, including using international treaties, harmonization of regulations across borders, and greater work of such institutions as the United Nations or regional authorities. Policymakers also investigate new models of governance that combine the functions of the state, as well as the interests of the individual and societal activities, to make sure that they will be equitable, accountable, and consider digital rights. These opportunities demonstrate how much more work will be necessary to balance innovation, free expression, security, and platform accountability through fast changes in technology and geopolitical competition. Overall, the existing teachings remind people that social media censorship is taking place in a rapidly changing environment characterized by a growing control of platforms, intensive state responses, and booming human rights activism. The direction toward more regulated, transparent, and rights-espousing models is the aspect of a consensus development on the idea of sustainable, democratic digital governance. However, new challenges such as the opacity of algorithms, conflicts of jurisdiction, and dangers of excess censorship must continue to attract critical questioning and dynamic reformation. This developing environmental setting has the capability of providing opportunities and responsibilities in legal innovation and the multilateral collaboration in the creation of the future of online speech check.

## 3.8 Conclusion

The present chapter has provided a systematic comparative law overview of the state of social media censorship in Nigeria, the United States, and the European Union, demonstrating that these jurisdictions have also experienced that there are differences and similarities in the regulation of expression on the Internet. Although the three mention the usefulness of the freedom of expression, their legal frameworks greatly differ in the extent of protection provided, the level of government game allowed, and the processes of regulation and accountability over the state and non-state actors. Nigerian constitutional protections are subject to violation through wide and vague statutory provisions and executive overflows that grant permission to arbitrary censorship and sparse procedural protection. The United States has the most robust constitutional protections based on the First Amendment, significantly narrowing direct governmental curbs, but much of the content regulation remains left to the platforms, which have become empowered, as Section 230 grants immunity. The European Union finds a middle ground between them by placing human rights principles within elaborate legislative iterations, like the Digital Services Act, and empowering the judicial oversight so that restrictions could be reviewed as legitimate, necessary, and proportionate. Multifaceted regulation in the EU in contrast to United States self-regulation and the very underdeveloped enforcement patterns with a politicized modernity in Nigeria. The four of them share, however, common problems, such as the growing influence of social media platforms, the debate about applying third-party intermediaries, the implications of national security reporting and online freedom of expression. Once again reaffirming the use of international human rights law, especially ICCPR Article 19 and General Comment No. 34, this chapter has made it clear that any limitation to online expression should be pegged to clear legal frameworks that adhere to the principles of necessity and proportionality. These general principles help create the necessary normative criterion against which the laws and practices in

the country will have to be evaluated in order to protect democratic discourse and fundamental freedoms in the digital era. In the following chapter, this legal framework will be the necessary framework on which this paper will further critically analyze the legal framework itself and its ability to protect free expression in cyberspace. It will also promote specific recommendations that aim to establish more transparent, accountable, and rights-respecting methods of governing content on social media, informed by best practices, gaps, and challenges reflected in such comparative analysis.

**References**

Gielow Jacobs, L. (2022). Freedom of speech and regulation of fake news. *The American Journal of Comparative Law*, *70*(Supplement_1), i278-i311.

Barata, J. (2024). The Future of Free Speech: Old Threats and New Challenges.

Bashir, S., Zakir, M. H., Khan, S. H., & Ibrahim, S. (2025). The Impact of Social Media on Freedom of Speech and Privacy Rights. *Journal of Regional Studies Review*, *4*(1), 304-315.

Bell, M. C. (2021). John Stuart Mill's harm principle and free speech: expanding the notion of harm. *Utilitas*, *33*(2), 162-179.

Bhaghamma, G. (2023). A comparative analysis of doctrinal and non-doctrinal legal research. *ILE Journal of Governance and Policy Review*, *1*(1), 88-94.

Birk, M., & Nowak, M. (2020). An overview of international protection. *Research Handbook on Torture*, 80-105.

Bollinger, L. C., & Stone, G. R. (Eds.). (2022). *Social media, freedom of speech, and the future of our democracy*. Oxford University Press.

Bromell, D. (2022). *Regulating Free Speech in a Digital Age*. Springer International Publishing.

Bulman-Pozen, J., & Seifter, M. (2023). State Constitutional Rights and Democratic Proportionality. *Columbia Law Review*, *123*(7), 1855-1928.

Carman IV, E. F. (2024). Controlling the Narrative: How Social Media Companies Exploit Section 230 Immunity to Censor Online Speech. *Miss. LJ*, *94*, 599.

Chakma, K. (2024). A Review of The Role of Social Media in Shaping Social Movements. *Available at SSRN 5083142*.

Clune, C., & McDaid, E. (2024). Content moderation on social media: constructing accountability in the digital space. *Accounting, Auditing & Accountability Journal*, *37*(1), 257-279.

Codagnone, C., & Weigl, L. (2023). Leading the charge on digital regulation: The more, the better, or policy bubble?. *Digital Society*, *2*(1), 4.

Columbia Global Freedom of Expression. (2018, August 23). *Lohé Issa Konaté v. The Republic of Burkina Faso - Global Freedom of Expression*. Global Freedom of Expression. https://globalfreedomofexpression.columbia.edu/cases/lohe-issa-konate-v-the-republic-of-burkina-faso/

Columbia Global Freedom of Expression. (2023, November 2). *The Sunday Times v. United Kingdom - Global Freedom of Expression*. Global Freedom of Expression. https://globalfreedomofexpression.columbia.edu/cases/the-sunday-times-v-united-kingdom/

Columbia Global Freedom of Expression. (2023b, December 8). *Delfi AS v. Estonia - Global Freedom of Expression*. Global Freedom of Expression. https://globalfreedomofexpression.columbia.edu/cases/delfi-as-v-estonia/

De Gregorio, G., & Dunn, P. (2022). The European risk-based approaches: Connecting constitutional dots in the digital age. *Common Market Law Review*, *59*(2).

De Winkel, T. (2023). Fringe platforms: An analysis of contesting alternatives to the mainstream social media platforms in a platformized public sphere.

de Zayas, A., & Martín, Á. R. (2012). Freedom of opinion and freedom of expression: some reflections on General Comment No. 34 of the UN Human Rights Committee. *Netherlands International Law Review*, *59*(3), 425-454.

Douek, E. (2021). Governing online speech: From" posts-as-trumps" to proportionality and probability. *Colum. L. Rev.*, *121*, 759.

Echr. (n.d.). *HUDOC - European Court of Human Rights*. https://hudoc.echr.coe.int/eng?i=001-57499

Eisenegger, M., & Schäfer, M. S. (2023). Reconceptualizing public sphere (s) in the digital age? On the role and future of public sphere theory. *Communication Theory*, *33*(2-3), 61-69.

Elmimouni, H., Rüller, S., Aal, K., Skop, Y., Abokhodair, N., Wulf, V., & Tolmie, P. (2025). Exploring Algorithmic Resistance: Responses to Social Media Censorship in Activism. *Proceedings of the ACM on Human-Computer Interaction*, *9*(2), 1-24.

Enkin, E. (2021). The role and purpose of Ombudsmen in a global media world. In *Handbook of global media ethics* (pp. 107-121). Cham: Springer International Publishing.

Filatova-Bilous, N., Tsuvina, T., & Karnaukh, B. (2023, December). Digital Platforms' Practices on Content Moderation: Substantive and Procedural Issues Proposed by DSA. In *Conference on Integrated Computer Technologies in Mechanical Engineering–Synergetic Engineering* (pp. 196-207). Cham: Springer Nature Switzerland.

Flew, T. (2023). Policy futures for digital platforms. In *the sage handbook of the digital media economy* (pp. 543-568). SAGE Publications Ltd.

Folland, A. (2022). The Harm Principle and the nature of harm. *Utilitas*, *34*(2), 139-153.

Galetta, D. U. (2022). The EU law principle of proportionality and judicial review: its origin, development, dissemination and the lessons to be learnt from the EU Court of Justice. In *ECB LEGAL CONFERENCE* (pp. 55-76). Publications Office of the European Union.

Geerligs, P. R. JS Mill: Speech, Harm, and Progress.

Gerrard, Y. (2022). Social media moderation: The best-kept secret in Tech. In *The social media debate* (pp. 77-95). Routledge.

Gielow Jacobs, L. (2022). Freedom of speech and regulation of fake news. *The American Journal of Comparative Law*, *70*(Supplement_1), i278-i311.

*Glad Mills A Contractual Approach to Social Media Governance | Yale Law & Policy Review*. (n.d.). https://yalelawandpolicy.org/contractual-approach-social-media-governance

Glennon, M. J. (2024). *Free Speech and Turbulent Freedom: The Dangerous Allure of Censorship in the Digital Era*. Oxford University Press.

Griffin, R. (2023). Rethinking rights in social media governance: human rights, ideology and inequality. *European Law Open*, *2*(1), 30-56.

Herrenberg, T. (2023). Freedom of Expression. In *Encyclopedia of the Philosophy of Law and Social Philosophy* (pp. 1031-1036). Dordrecht: Springer Netherlands.

Jamshidi, M. (2021). The Discriminatory Executive and the Rule of Law. *U. Colo. L. Rev.*, *92*, 77.

Kaminski, M. E., & Malgieri, G. (2024). Impacted Stakeholder Participation in AI and Data Governance. *Forthcoming on Yale Journal of Law and Technology (2024-2025), U of Colorado Law Legal Studies Research Paper*, (24-23).

Koltay, A. (2021). The protection of freedom of expression from social media platforms. *Mercer L. Rev.*, *73*, 523.

Kulesza, J. (2024). Human Rights and Social Media: Challenges and Opportunities for Human Rights Education. *Polarization, Shifting Borders and Liquid Governance*, 139.

Kumar, A. M., & Gupta, S. (2023). Governance of social media platforms: A literature review. *Pacific Asia Journal of the Association for Information Systems*, *15*(1), 3.

Leerssen, P. (2023). An end to shadow banning? Transparency rights in the Digital Services Act between content moderation and curation. *Computer Law & Security Review*, *48*, 105790.

Makwudo, K. K., & Emmanuel, N. A. (2025). SOCIAL MEDIA AS THE NEW AGORA: A HABERMASIAN INQUIRY INTO THE PUBLIC SPHERE AND DELIBERATIVE DEMOCRACY IN THE DIGITAL AGE. *Trinitarian: International Journal Of Arts And Humanities*, *1*(1).

Marchal, N., Hoes, E., Klüser, K. J., Hamborg, F., Alizadeh, M., Kubli, M., & Katzenbach, C. (2025). How negative media coverage impacts platform governance: evidence from facebook, twitter, and youtube. *Political Communication*, *42*(2), 215-233.

Meta. (2022). *Transparency Report 2022*. https://transparency.meta.com/

O'Mahony, P. (2021). Habermas and the public sphere: Rethinking a key theoretical concept. *European Journal of Social Theory*, *24*(4), 485-506.

Popiel, P., & Sang, Y. (2021). Platforms' governance: analyzing digital platforms' policy preferences. *Global Perspectives*, *2*(1).

Pozsár-Szentmiklósy, Z. (2023). The role of the principle of proportionality in identifying legal capacity to fundamental rights. *Studia iuridica lublinensia*, *32*(5), 333-358.

Refworld - UNHCR's Global Law and Policy Database. (2024, February 11). *General comment no. 34, Article 19, Freedoms of opinion and expression*. Refworld. https://www.refworld.org/legal/general/hrc/2011/en/83764

Schlag, G. (2023). European Union's regulating of social media: A discourse analysis of the Digital Services Act. *Politics and Governance*, *11*(3), 168-177.

Schramm, M. (2024). Platform Administrative Law A Research Agenda. *Available at SSRN 4898542*.

Shany, Y. (2023). Digital rights and the outer limits of international human rights law. *German Law Journal*, *24*(3), 461-472.

Steel, J., & Petley, J. (Eds.). (2023). *The Routledge companion to freedom of expression and censorship* (pp. 232-244). Abingdon: Routledge.

Susen, S. (2023). A new structural transformation of the public sphere? With, against, and beyond Habermas. *Society*, *60*(6), 842-867.

Suzor, N., & Gillett, R. (2022). Self-regulation and discretion. In *Digital platform regulation: Global perspectives on internet governance* (pp. 259-279). Cham: Springer International Publishing.

Theil, S. (2022). Private censorship and structural dominance: Why social media platforms should have obligations to their users under freedom of expression. *The Cambridge Law Journal*, *81*(3), 645-672.

Trithara, D. (2024). Agents of platform governance: Analyzing US civil society's role in contesting online content moderation. *Telecommunications Policy*, *48*(4), 102735.

UN Human Rights Committee (2011). General Comment No. 34, CCPR/C/GC/34.

X Transparency Report. (2024). *Content Moderation and Enforcement*. https://transparency.x.com/